Standard Operating Procedure (SOP)

Country Specific Requirements Australia and New Zealand

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QMS Chapter:	4.9 Product Safety, Product Quality and Pharmacovigilance

Applicability

Bayer Level:	CH, PH

This document is electronically approved (signatures on the last page)

Distribution Sheet for Quality Regulations

Division/Business Unit	☒ PH ☒ CH
GBS Location	☐ Global Business Services Barcelona ☐ Global Business Services Costa Rica/Brazil ☐ Global Business Services Manila ☐ Global Business Services Gdansk ☐ Global Business Services India ☒ Global Business Services Dalian ☐ Global Business Services Germany
Region/ Country	☐ Global ☒ Specific Country: Australia, New Zealand
Relevance for R&D QMS	☐ Affected ☐ Interface ☒ N/A

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1 Scope and Framework

1.1 Scope

Bayer Country Quality Units are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Global Business Service in process steps like complaint initiation, forwarding for investigation to the RQU, and final approval including complaint sample management and reimbursement process.

This SOP defines clear guidance to the Global Business Service regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

2 Abbreviations

AE	Adverse Event
CMO	Contract Manufacturing Organization
CQH	Country Quality Head
CQU	Country Quality Unit
GBS	Global Business Service
OTC products	Over-the-counter products
PTC	Product Technical Complaint
PV	Pharmacovigilance
RQU	Responsible Quality Unit
AUS	Australia
NZ	New Zealand
ACCC	Australian competition and consumer commission
TGA	Therapeutic Goods Administration
MEDSAFE	New Zealand Medicines and Medical Devices Safety Authority
MI	Medical information
SC	Supply Chain

3 Purpose & Set-Up

3.1 Purpose

Country Specific Requirements for Australia and New Zealand are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, escalation rules.

During the processing of all PTCs by Bayer owned Global Business Service all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

3.2 General guidance

The employees of Global Business Services follow the SOP during complaint processing in the complaint database on behalf of the Country Quality Units.

3.3 Roles and responsibilities

<Can be adapted if needed, but still in compliance with SSC-PTC-SOP-001>

GBS team

- manages PTCs and suspected falsification and counterfeit on behalf of the CQUs of the legal entity which introduces product into the market (e.g. Marketing Authorization Holder, Distribution license holder)
- Enters PTCs, suspected falsification and counterfeit i and Usability Issues according to defined timelines, into the global complaint database in English language
- forwards all cases that are not PTCs back to the CQU or applicable function for further processing
- performs the initial intake of complaints after receipt and considering the information provided by the PV in case of an AE and/or a medical device (incl. Medical Device constituent of combination product) is involved
- informs the respective PV about all PTCs with a potential associated AE or LODE or potentially reportable medical device complaints, including the unique complaint database number and all relevant follow-up information (e.g. Batch number)
- informs the CQU about PTCs where local authorities are involved, about all potential falsification and counterfeits and any other cases described in the Country Specific SOPs
- checks completeness and accuracy of information (including the photo or video, if available from the complainant) before forwarding the cases to the RQU
- Initiates first contacts with the complainant within first 5 days of receipt of the complaint information to obtain follow-up information asks CQU for any support contacting the complainant if not possible/allowed by GBS (e.g. data privacy, non-hosted language)
- ensures translation of non-hosted languages
- forwards all cases to the respective RQU for further investigation and final assessment
- checks if a complaint sample is available and starts the process to retrieve the sample, documenting these efforts including the number of attempts requesting sample in detail in complaint database
- reviews the case for plausibility and closes the assessed complaint in complaint database
- support the process for reimbursement management
- responds to the complainant, for PTC+AEs in liaison with the PVCH and documents the response in the global complaint database or other cross-referenced system in cooperation with the CQU

	- notifies the legal manufacturer of a device and where necessary, the manufacturer's authorized representative and the importer, if applicable.in case of any discussion or doubts contacts the CQH as the first line support
Country Quality Head (CQH) / Country Quality Unit (CQU)	- ensures the appropriate handling of PTCs, and suspected falsified and counterfeit incidents, reported in the respective country including the timely execution of the related activities, particularly for the entry of the cases into complaint database, forwarding them and for responding to the complainant - Fulfill all obligations, e.g. PTC related reporting requirements defined by legislation regulations - oversees and monitors the whole PTC process for products on market of their legal entity in case of delegation to GBS by controlling appropriate Key Performance Indicators according to GSOP 1372 “Perform Country Quality Management Review”.

4 Specific requirements regarding PTC handling

4.1 Country Specific Requirements listed by different topics

<table>
<tr><th>Description</th><th>Assigned Roles & Document Reference</th></tr>
<tr><td>

4.1.1 General Information

In Australia the company operates under one legal entity with distributor status:

Bayer Australia Ltd., the main office is in Australia, 875 Pacific Highway, Pymble NSW 2073, Australia.

In New Zealand the company operates under one legal entity with distributor status:

Bayer New Zealand Limited, 74 Taharoto Road, Takapuna, Auckland 0622, New Zealand.

Business Premises: Bayer New Zealand Limited (Taharoto Road) B: Hive Building Suite 305 Level 3 72 Taharoto Road Takapuna Auckland 0622 New Zealand.

GBS DLC located in the city Dalian of China, which perform administrative part of PTC handling following roles and responsibilities.

</td><td></td></tr>
<tr><td>

4.1.2 Contact list

<table>
<tr><th>Item</th><th>E-mail address</th></tr>
<tr><td>CQU</td><td>qa.anz@bayer.com</td></tr>
<tr><td>Drug Safety/ Pharmacovigilance</td><td>drugsafety.anz@bayer.com</td></tr>
<tr><td>Case involving HA
(Including confirmed counterfeit complaint)</td><td>PH Products:
anz.bspra@bayer.com
CH Product:
bal-ch-regulatory@bayer.com</td></tr>
<tr><td>Medical Information</td><td>medinfo.anz@bayer.com</td></tr>
</table>

Remark:
Current name and e-mail address of CQH and CQH deputy are found on the QINT SharePoint:

https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list

</td><td></td></tr>
<tr><td>

4.1.3 Escalation Rules

The CQH and the CQH deputy should be notified via email (also via generic CQU address if applicable) about any complaint case referring to at least one of the following situations:

- Suspected and confirmed falsification and Counterfeit incidents
- Any cases involving Health Authorities*
- All cases with initial risk classification High or Medium
- Cases with final risk category high or medium

</td><td>GBS</td></tr>
</table>

<table>
<tr><th>Description</th><th>Assigned Roles & Document Reference</th></tr>
<tr><td>
- Any cases have already/ been alleged to seek legal involvement

Remark:
Current name and e-mail address of CQH and CQH deputy are found on the QINT SharePoint:
https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list
*Any cases involving Health Authorities (TGA, ACCC, MEDSAFE) need forward to the CQH, CQH deputy and copy anz.bspra@bayer.com(PH only), bal-ch-regulatory@bayer.com(CH only) for awareness. If further information is obtained or PTC entry completed, ensure information is also shared with ANZ CQH, CQH deputy and anz.bspra@bayer.com, bal-ch-regulatory@bayer.com.
Once HA involvement is confirmed, GBS perform case entry and inform appropriate team to support to gather information if applicable.
</td><td></td></tr>
<tr><td>
4.1.4 Pharmacovigilance cases
If a complaint case is related to any type of Adverse Event, the Pharmacovigilance department has to be informed via the following e-mail address.

<table>
<tr><th>Item</th><th>E-mail address</th></tr>
<tr><td>Drug Safety</td><td>drugsafety.anz@bayer.com</td></tr>
<tr><td>PTC+AE case relevant inquiry</td><td>pvptc@bayer.com</td></tr>
</table>

Informs Drug Safety about all PTCs with a potential associated AE or LODE or
potentially reportable medical device.
If GBS PTC team receive a case with a potential associated AE that does not require entry into Complaint Database, GBS PTC team reply with rational and CC CQU at the same time.
</td><td>GBS</td></tr>
<tr><td>
4.1.5 Product Samples
- GBS performs up to 3 documented attempts to obtain the following information as applicable: photo/video, sample availability, sample collection address, missing or insufficient relevant information such as batch number, applied serial numbers for suspected counterfeits, or any kind of information request by RQU to support investigation. GBS provides rational when less or even no attempt was made, select the rational or add the reason in Complaint Database. The complainant is asked to keep the sample, if available, for at least 3 weeks.
- In ANZ, used products samples such as used IUS, Nasonex etc. are treated as biohazard. If a non-IUS Biohazard sample or a sample requested special handling by RQU, always get the collection approval from CQU.
</td><td>GBS</td></tr>
</table>

Description	Assigned Roles & Document Reference
For AU - Samples are required for all potential risk High and Medium cases, and kept with local for at least 3 months, depending on RQU physical sample request for sample delivery. For IUS family products, IUSs BP 1429 “IUS Technical Complaints Guidance document” needs to be followed. - Used IUS samples need to be collected by a Bio-hazard Courier. Shipment of non-IUS biohazard sample for known/repeat issue should be substituted by photo or sample. - Samples which pose a danger, for example flame hazard samples, shipment of samples should be substituted by a photo or video. - For products sample other than IUS, when RQU requests a physical sample, GBS contact complainant/reporter to send sample to Bayer office. GBS needs to document the physical request in Complaint Database if not available. - For used IUS product sample, GBS contacts the Pharmacy/ Reporter and requests that the complaint sample be retained. The information listed in table “Required information to perform Bio-Hazard collection” is always required to perform Bio-Hazard collection. GBS then informs CQU to perform Bio-Hazard collection along with the required information. **For NZ** - Sample collection for New Zealand is in charge by Bayer Australia. GBS get sample collection approval from CQU. Once approved, follow CQU’s instructions to collect sample.	

Required information to perform Bio-Hazard collection	
Complaint sample be retained	Yes
Collection address (including postcode)	Yes
Contact information (including Phone number)	Yes
Collection available time (Normally open date & time)	Yes
PTC ID	Yes
Opening Hours of clinic	Yes

4.1.6 Statement letter PTC rejection: For a potential PTC+ AE case, if PTC rejected with rational, share the non-PTC reply to *drugsafety.anz@bayer.com*, loop CQU at the same time. For other types of non-PTC issue, send non-PTC reply to the email sender and loop CQU at the same time. Acknowledgement Letter when a complaint comes in: NA Response Letter after closing: Standard response letters are prepared by CQU, GBS support send out if applicable. GBS to upload all response letters to complaint database.	GBS

Description	Assigned Roles & Document Reference
Exception: # Suspected Counterfeit Cases No response should be shared with complainant for any confirmed counterfeit/ Falsification cases. Otherwise share the following response to consumer for Suspected Counterfeit Cases for Non-Counterfeit cases only: Response for Non-Counterfeit cases: The Investigation into your query has now been closed out. On review, no discrepancy was noted between the registered artwork held at the production site and the pictures you have provided with batch number XXX. PLEASE NOTE: This assessment is based on artwork comparison only.	
4.1.7 RQU Contact list A table with all available products in the country, needed for entry into the complaint database, is available on SharePoint: go/ptcops. For CH products registration status in the respective country as well as Manufacturing Site are available via SYNAPS: go/synaps. List with the respective RQU contact names are provided by the Divisional Quality Assurance function and available on SharePoint: PH: *PH RQU responsible list_HJ.xlsx* CH: *IQMS_MASTER LIST COMPLAINT RESPONSIBILITIES.xlsx*	GBS
4.1.8 List of Local Opportunities Products All Local Opportunities Products are registered in the RQU Contact list (4.1.7).	
4.1.9 Data Privacy Requirements In IQMS complaint database, 'Person' session could be used to store personal information, e.g. Source document. *IQMS User Guide Storage of Personal Data -redacted_unredacted in Complaints.pdf* Whenever 'Person' session is not used, GBS follow the following instructions to redact personal data.	

Description	Assigned Roles & Document Reference

Content/Redaction	Redact	Reduction Not Needed
Patient /Customer First and /or Last Name	O	
Patient /Customer Home Address, Phone Number, Email Address	O	
Patient ID	O	
Patient /Customer City		O
First and/or Last name of a HCP, Pharmacist etc. which is also the patient or customer	O	
First and/or Last name of a HCP, Pharmacist etc. which is NOT the patient or customer	O	
Name, City, Address, Email, phone number of an official Institution e.g. Hospital or Pharmacy		O
Patient or Customer Initials e.g. H.J.	O	
Patient or Customer Year of Birth (Birthday)	O	

4.1.10 Gathering additional information (including obtaining translation)

GBS
CQU

In cases when the CQU receives a complaint, the CQU sends this information to GBS via e-mail as soon as possible.

Translation is not required for AUS and NZ cases, since English is a hosted language in GBS Dalian. GBS contacts complainant (in verbal or written) to gather additional information. If GBS cannot contact complaints via oversea phone call, such as phone number without state code, GBS seeks help from CQU for risk High or Medium cases.

If complaints are reported from Bayer sales, the Bayer sales Colleague who reported the complaint will be the first contact should additional information be required for the investigation.

In case a complaint transferred from a Bayer employee (except sales) or social media department, when the complainant contact information is available, GBS will contact the complainant to obtain information required for investigation.

4.1.11 Reimbursement and Replacement

GBS

Reimbursement

Inform MI& CQU, there is no other action required from GBS.

Description	Assigned Roles & Document Reference
Replacement **For PH product, AU & NZ** When GBS receives a request for a replacement where MI is not copied on the email, GBS forwards the replacement request to the MI team, providing the Complaint Database case number where applicable. **For CH products** In general, E-voucher will be provided as CH products replacement instead of physical products. When GBS receives a request for a replacement (From Clinic, Pharmacy, HCP, Bayer Order Team) where MI is not copied on the email, GBS forwards the replacement request to the MI team, providing the Complaint Database case number where applicable. GBS to send E-voucher to Individual Customer when MI is not copied on the email.	
4.1.12 Mandatory Spot Checks for Translations NA	GBS
4.1.13 Exceptions and special cases - Neb Device Complaints from Niche Medical (Joe Viegas): After the complaint is reviewed by the GBS team, if the issue reported is solely device related, then no further action is required of the GBS team as the I-Neb device is neither owned nor managed by Bayer ANZ. If the complaint involves the Drug Product or raises a concern that the Drug Product has impacted the use of the device. A complaint (Drug Product) needs to be initiated in Complaint Database. e.g. if there were crystals in the solution that caused the device to block. All Drug Product related complaint investigations are to be provided to Niche Medical. The GBS team need to notify CQU of this complaint and provide the complaint number. CQU provides the investigation results to Niche Medical.	
4.1.14 Others NA	

5 Internal References

- SSC-PTC-SOP-001 “Manage Product Technical Complaints and Suspected Counterfeit Incidents in GBS”

6 External References

- N/A

History of changes

Version	Significant changes with respect to previous version	Effective Date *(yyyy-mm-dd)*
1	New document	2020-11-09
2	# Country specific SOP template version up to 4.0, SSC-PTC-BP-002, V4.0, merged all information to current document from SSC-SOP-AUS and NZ-005, version 1.0. Changed Document Label to SSC-PTC-SOPAUS and NZ-005 # Changed SSCDN to GBS in all session, changed SCD to GBS DLC # Update author and approvers # Updated abbreviations list in session 2.0 # Updated contact list # Revised session 4.1.3 escalation rules # Updated session 4.1.4 pharmacovigilance cases, added pvptc@bayer.com email address and adjusted all relevant wording # Remove User Information Letter 49 as Annex1 in session 7 # Updated session 4.1.5 product samples # Revised session 4.1.6 statement letter # Updated session 4.1.7 RQU contact list # Updated session 4.1.10 gathering additional information # Updated session 4.1 11 reimbursement and Replacement	2023-09-22
3	# Updated session 3.3 Roles and responsibilities. # Updated session 4.1.1 General Information, add Suspected Falsification and Counterfeit Incident. # Updated session 4.1.2 Contact list, add on the QINT SharePoint: Country Quality List. # Updated session 4.1.3 Escalation Rules, deleted initial risk category I or II, add all cases with potential risk classification High or Medium. # Updated session 4.1.4 Pharmacovigilance cases, deleted Dev@com. # Updated session 4.1.5 Product samples. # Minor changes for 4.1.6 Statement letter. # Minor changes for 4.1.7 RQU contact list. # Minor changes for 4.1.10 Gathering additional information. # Minor changes for 4. 1.11 Reimbursement and Replacement.	See cover page

7 Annex 1

Product Complaint Form

Complaint created (date)……
Complaint received (date) ……

Product information:	
Product name	
Batch / lot number	
Dosage form *(cream, tablet, capsule, etc.)*	
Package type/size	
Number of packages	
Sample available?*	Yes/No
*Sample available = please keep for further potential shipment	

Complaint information:	
Complaint description (defect description, is it suspected counterfeit case, etc.)	
Adverse event reported?	Yes/No
Does the complainant expect a response from Bayer?**	
**By requesting a response, the Complainant agrees to his/hers contact data being processed by Bayer for the purpose of providing the answer to the submitted complaint *(the exact sounding to be aligned with legal)*	

Complainants' contact information attention: in the countries with special Data Privacy regulations to be replaced by the complainant code number (to be given by CQU)	
Name and surname	
E-mail address	
Telephone	
Home address	

Sender (if other than Complainant, e.g. a pharmacy)	
Senders' Name (Legal entity)	
Address	
E-Mail address	
Telephone number	

Any additional information	

Task: Content Approval Verdict: Approve changes & release Approval to be made Effective	Jinghua Yin (jinghua.yin@bayer.com) Approver - Content 29-Oct-2025 02:23:15 GMT+0000
Task: Final Approval Verdict: Approve changes & release Final Approval to be made Effective	Michael Schafer (michael.schafer@bayer.com) Approver - QA 29-Oct-2025 22:52:45 GMT+0000